

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF KANSAS**

BRENNAN W.W. BEHNKE,	)	
	)	
Plaintiff,	)	
	)	
vs.	)	Civil Action No. 18-1318
	)	
KURT D. SPARTZ and	)	
T&C TRUCKING, LLC,	)	
	)	
Defendants.	)	
_____	)	

COMPLAINT

COMES NOW plaintiff, Brennan W.W. Behnke, and for his cause of action against defendants, Kurt D. Spartz and T&C Trucking, LLC, alleges and states as follows:

1. Plaintiff is a resident and citizen of the State of Kansas.
2. Defendant Kurt D. Spartz is a resident and citizen of the State of Minnesota.
3. Defendant T&C Trucking, LLC is a Minnesota corporation.
4. Jurisdiction is conferred on this Court pursuant to 28 USC § 1332 in that it involves citizens of different states and a sum in controversy in excess of \$75,000.00 exclusive of interest and costs.
5. On August 15, 2018, in Pawnee County, Kansas, defendant, Kurt D. Spartz, negligently operated a motor vehicle thus causing a motor vehicle accident involving Plaintiff.
6. At the time of said negligence, Kurt D. Spartz was in the course of his employment with T&C Trucking, LLC. Therefore, said employer is vicariously liable for its employee's negligence.
7. As a result of defendant Kurt D. Spartz's negligence, Plaintiff sustained personal injury and other damages.

WHEREFORE plaintiff, Brennan W.W. Behnke prays for judgment against defendants, Kurt D. Spartz and T&C Trucking, LLC, and each of them, as follows:

- a. For actual damages for a sum in excess of \$75,000.00;
- b. For the costs of this action; and
- c. For such other and further relief as the Court deems just and equitable.

/s/ Timothy J. King
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